

EXHIBIT APPENDIX (SAC): EXTRACTED FOR CONVENIENCE

This appendix includes selected PDF pages from identified certified sources that support the motion for leave to file the Second Amended Complaint and related requests for judicial notice (including denial letter pages, defense memorandum exhibits, correspondence, investigation record, and transcript excerpts).

Full hearing or trial-day transcripts remain available if the Court orders a complete attachment or local rules require it.

Page numbers in this merged PDF refer to the attached page images in this volume, not to reporter line numbers.

The index on the following page lists each exhibit mark and the appendix page where that exhibit begins (separator sheet).

EXHIBIT APPENDIX INDEX

Appendix page numbers are 1-based in this merged PDF (separator sheet = start).

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EXHIBIT A

February 25, 2021 CSAA denial letter (page 1 / operative language)

Source id: aaa_denial_p1

CLERKS-TRANSCRIPTS-SOURCES/AAA ins. info.pdf



P.O. Box 24523
Oakland, CA 94623-1523
Phone 800.922.8228
Fax 877.548.1610



000101 7117606 000 01 001

FRANCISCUS ROSARIO
835 TERRY A FRANCOIS BLVD
SAN FRANCISCO, CA 94158-2209



February 25, 2021

Re: Insured: Subhi Abdelhalim
Claim No.: 1004-09-1054
Date of Loss: February 04, 2021

Dear Franciscus Rosario:

We have concluded our investigation of your claim.

Based on our investigation, and after carefully reviewing the facts and circumstances of your claim, we have concluded that our insured is not liable for your damages resulting from this loss. Therefore we must decline your claim. In addition, we dispute your right to recover the amount of damages you have claimed.

Our decision is based on the facts currently available. If you have any additional information which you believe is relevant to your claim, please submit that information to us for our consideration.

If you believe this claim has been wrongfully denied or rejected in whole or in part, you may have the matter reviewed by the Claims Services Bureau of the California Department of Insurance, 300 South Spring Street, Los Angeles, California 90013; Telephone: 800.927.4357 or 213.897.8921.

According to California law, you have two (2) years from the date of an incident to file a lawsuit for damages as a result of personal injury. If you sustained personal injuries as a result of the incident, you must settle your claim or file a lawsuit against those responsible for your personal injuries within two years from the date of the incident. Should you fail to do so, we will be entitled to deny your personal injury claim on that basis.

According to California law, you have three (3) years from the date of an incident to file a lawsuit for damages as a result of damage to your property. If you sustained damage to your property as a result of the incident, you must settle your claim or file a lawsuit against those responsible for the damage to your property within three years from the date of the incident. Should you fail to do so, we will be entitled to deny your property damage claim on that basis.

Should you have any questions, please do not hesitate to contact me.

Sincerely,

Sarah Rash

Sarah Rash
Claims Representative
Phone: 856-209-7086



EXHIBIT B

February 25, 2021 CSAA denial letter (page 2 / continuation)

Source id: aaa_denial_p2

CLERKS-TRANSCRIPTS-SOURCES/AAA ins. info.pdf



Account No. **04767X**

CSAA-CA
Sendout 60

XM

Attention : **Tonya McConnaughay**

CSAA INSURANCE GROUP,AAA INSUR

Customer Service:

Metro Reporting Customer Support 1-800-245-6686 or help@metroreporting.com

Metropolitan Reporting Bureau
BOX 926, William Penn Annex
Philadelphia, PA 19105-0926
FAX (800) 343-9047

Type of Report: AUTO ACCIDENT

INSURED : SUBHI A ABDELHALIM
CLAIM NUMBER: 1004-09-1054
POLICY NUM. : CAAS100310857
DATE OF LOSS: 02/04/21
LOSS STREET : 5th St & Tehama St
LOSS CITY : San Francisco CA
POLICE DEPT.: NEED SIGN AUTH WITH REQ
REPORT NUM. : 210079556
INS. DRIVER : ABDELHALIM SUBHI A
OTHER DRIVER:
PCT./DIST. : SAN FRANCI
DESC.OF OTHER: v1 turning right po

THANK YOU FOR THE ORDER!

Any questions or problems please feel free to contact us.

PH. (800) 245-6686 or Help@metroreporting.com



1131096098



EXHIBIT C

631802 EXHIBITS-MEMORANDUM-AND-SUPPLEMENTAL (defense memorandum exhibits B-E)

Source id: denial_pack

PRINT-READY-2026-03-02-171644/PRINT-SETS/DEFENDANTS/02-CSAA-Insurance-Exchange/CGC-25-631802/EXHIBITS-MEMORANDUM-AND-SUPPLEMENTAL.pdf

EXHIBIT INDEX

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

Exhibits in support of: Memorandum in Support / Supplemental Memorandum (non-duplicated)

(Exhibits A, F, G are in 04-DEMAND-WITH-EXHIBITS)

Exhibit	Brief Description	Page
B	Hearing Tr. pp. 29-31 (911 obtainability: Dolan Law Firm M	1
C	Hearing Tr. p. 140 (Defense subpoena to SFPD for 911/BWC/C	4
D	RT Day 8, pp. 108-110 (Abdelhalim authenticates 911)	6
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EXHIBIT B

Hearing Tr. Feb 18, 2025, pp. 29-31 (911 obtainability: Dolan Law Firm May 12, 2021)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, February 18, 2025 Pretrial Hearing, CGC-21-594102

Document: ALL-HEARING-TRANSCRIPTS-ROSARIO-AAA

Pages Included: Hearing Tr. pp. 29, 30, 31

Date: February 18, 2025

Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102

Relevance: Jessup testimony: Dolan Law Firm obtained 911 recording May 12, 2021; proves obtainability

Merits: Sworn testimony; supports fraud claim that CSAA could have obtained 911 before denial.

1 Limine number 17.

2 MR. SOBATI: Your Honor, in theory, chronologically as we
3 just printed that, that should be somewhere down two-thirds of the
4 way down that pile. I do apologize for that.

5 MR. ROSARIO: I believe -- I believe eliminating this would
6 not only violate my 14th Amendment to the U.S. Constitution --

7 THE COURT: Wait a minute. Wait a minute. Before you say
8 anything you have to give the other side the opportunity to review
9 your opposition.

10 MR. ROSARIO: Okay.

11 THE COURT: Sir, do you have a copy for defense counsel, or
12 can you identify it?

13 MS. NAVARATNASINGHAM: We located it, Your Honor.

14 MR. ROSARIO: In the meantime --

15 THE COURT: No, no, no. Let me keep you straight and narrow.
16 First thing we're going to do is the opposition that you have to
17 defendant's motion in limine number 17.

18 MR. ROSARIO: Okay.

19 THE COURT: You have various exhibits it looks like you want
20 to have admitted in this case.

21 MR. ROSARIO: Yes, sir.

22 THE COURT: We are going to go through each and every one of
23 them so we have a clear path with respect to each of these
24 exhibits.

25 MR. ROSARIO: Okay.

1 THE COURT: So, Exhibit A is a receipt to the Dolan Law Firm
2 that's dated 5-12-2021, for \$70. And, attached to that is a
3 document which is seven pages in total. So, there are six pages
4 in addition to the receipt. The receipt is number 987352. And,
5 I'll ask Defense to review these documents.

6 All right. The first question I have to Mr. Rosario is, some
7 of these exhibits -- and, I will identify the fifth page of
8 Exhibit A, the sixth page of Exhibit A -- have items that have
9 been blacked out or redacted. Can you tell me who or what was
10 involved with that redaction, or was that something that you just
11 received and copied off the disc -- the discs that you have
12 presented?

13 MR. ROSARIO: Those were redacted by the emergency services.
14 I believe that there was personally identifying information of the
15 individual or the phone numbers. You can see on F145631 they
16 redacted the anonymous phone number, as well as they redacted the
17 defendant's phone number at 145608. They approximately came in at
18 about 22 seconds apart from each other.

19 THE COURT: All right. Is there any objection to having
20 these admitted?

21 MS. NAVARATNASINGHAM: Yes, Your Honor. We -- first of all,
22 this is the first -- I mean, we're just -- these were not produced
23 in discovery -- during the regular course of discovery. It
24 appears from this receipt that they were retained in 2021, so I'm
25 not sure why we're seeing them here now.

EXHIBIT C

Hearing Tr. Feb 18, 2025, p. 140 (Defense subpoena to SFPD for 911/BWC/CAD)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, February 18, 2025 Pretrial Hearing, CGC-21-594102

Document: ALL-HEARING-TRANSCRIPTS-ROSARIO-AAA

Pages Included: Hearing Tr. p. 140

Date: February 18, 2025

Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102

Relevance: Jessup: defense subpoenaed SFPD for 911/BWC/CAD; proves CSAA later sought same record

Merits: Sworn testimony; implicit admission that 'concluded investigation' was incomplete.

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

EXHIBIT D

RT Day 8, pp. 108-110 (Abdelhalim authenticates 911: 'Yes. That is my voice')

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Reporter's Transcript, April 17, 2025 Trial (RT Day 8), CGC-21-594102

Document: 2025-04-17 Trial Day 8.pdf

Pages Included: RT 8, pp. 108-110

Date: April 17, 2025

Court Registry: Superior Court of California, County of San Francisco, Case No. CGC-21-594102

Relevance: Abdelhalim: 'Yes. That is my voice'; authenticates 911 admission; logical impossibil

Merits: Sworn trial testimony; Evid. Code 1220/1221.

1 MR. ROSARIO: For the sake of Your Honor, do
2 any of the jury need to hear it a second time to
3 clarify the audio that was spoken?

4 THE COURT: I don't believe so. Ask your
5 next question, sir.

6 MR. ROSARIO: Q. Mr. Abdelhalim, before we
7 listened to this audio clip, you stated that you did
8 not make a 911 call, is that correct? Or you did make
9 a 911 call, but then also stated that you never hit me
10 with your vehicle?

11 You know, there was no contact with me with
12 your vehicle.

13 THE COURT: Which question do you wish to put
14 in? One question at a time.

15 MR. ROSARIO: Q. Mr. Abdelhalim, was that
16 you on that phone call?

17 A. Yes.

18 Q. When you called in to the 911 operator, the
19 caller, you, Mr. Abdelhalim, said that you were
20 driving your van and there was a guy in front of you
21 and that you barely hit him with anything but you are
22 calling for him.

23 That was just played for you in the audio
24 track. Are you still denying that that was you?

25 A. That is not correct.

26 Q. What is not correct, the audio?

27 MS. NAVARATNASINGHAM: Objection, vague and
28 ambiguous. I am not sure what the question is.

1 THE COURT: Why don't you rephrase another
2 question?

3 MR. ROSARIO: Q. Mr. Abdelhalim, you said "I
4 barely hit him with anything." That was heard
5 clearly. That was you, correct? Yes or no?

6 A. Correct.

7 Q. I am sorry. What did you say?

8 A. Correct.

9 Q. That was you?

10 A. No.

11 MS. NAVARATNASINGHAM: Vague and ambiguous.
12 I don't think my client is understanding the question.

13 MR. ROSARIO: Q. I asked you,
14 Mr. Abdelhalim: You said in the audio and in the --
15 did he get transcript?

16 MR. SOBATI: Yes.

17 MR. ROSARIO: Q. Mr. Abdelhalim, can you see
18 the transcript, the first entry?

19 It says: Caller. It says: Yes, yeah, there
20 is -- I was -- I am driving a van and there is a guy
21 going to cross, he crossed from me, and I barely hit
22 him with anything but I am calling for him.

23 Was that your voice?

24 A. What do mean across from me? You was on
25 sidewalk --

26 THE COURT: No, no, Mr. Abdelhalim. The
27 question was: Was that your voice?

28 THE WITNESS: Yes. That is my voice.

1 THE COURT: That is all you have to answer.

2 THE WITNESS: Thank you.

3 THE COURT: Your next question.

4 MR. ROSARIO: Q. So before we listened to
5 the audio, I had asked you clearly whether you had hit
6 me and whether you had said you -- at the time -- I
7 asked you -- did I ask you whether you had called 911
8 and you told them you hit me, and you said: No. You
9 said: No -- clearly to all of us.

10 You said: I never told the 911 operator I
11 hit you.

12 MS. NAVARATNASINGHAM: Objection, Your Honor,
13 that misstates the question. I think he asked: Did
14 you call him for me?

15 MR. ROSARIO: The Court Reporter can read
16 that back.

17 THE COURT: No. We are not going to do that.

18 Your new question is: Based upon what was
19 said earlier in your testimony, have you changed your
20 opinion about having heard now the recording? Will
21 you change your opinion about whether you struck or
22 hit Mr. Rosario?

23 That's the question.

24 MR. ROSARIO: Yeah.

25 THE WITNESS: No.

26 MR. ROSARIO: Q. You did not change your
27 story?

28 A. No.

EXHIBIT E

Abdelhalim Deposition pp. 4-5, 17-19 (Insured acknowledged collision; described incident)

Case No.: CGC-25-631802

Superior Court of California, County of San Francisco

CITATION EXHIBIT ORIGIN:

Source: Deposition of Subhi Abdelhalim (CSAA's insured), September 30, 2022, CGC-21-594102

Document: 034-ALL-DEPOSITIONS.pdf (Abdelhalim deposition, pp. 4-5, 17-19)

Pages Included: Deposition pp. 4-5, 17-19

Date: September 30, 2022

Court Registry: CGC-21-594102

Relevance: Insured acknowledged 'that collision'; described incident in detail; supports falsit

Merits: Sworn deposition; corroborates CSAA could have obtained insured's account before denial

SUBHI ABDELHALIM
September 30, 2022

1 **A. Yes.**

2 Q. Thank you for clarifying. So if I ask a
3 question that's confusing or that you don't understand,
4 please let me know, okay? I will rephrase the question
5 for you, all right?

6 **A. Yes.**

7 Q. All right. I'm just going to go over some
8 ground rules of how a deposition goes, to make things go
9 smoothly and help us out -- get done as quickly as
10 possible, okay?

11 **A. Okay.**

12 Q. So the first thing is, you've just taken an
13 oath to tell the truth. Your testimony here today is
14 under penalty of perjury. That's the same oath that you
15 would take if you were testifying in a court of law to
16 tell the truth.

17 Do you understand that?

18 **A. Yes.**

19 Q. Okay. You're doing a great job. In order to
20 get an accurate record, we want to make sure that you
21 wait until I'm finished talking, or your attorney is
22 finished talking, before you begin your answer, okay?
23 You're doing great so far and I'll try not to talk over
24 you, as well, okay?

25 **A. Okay.**

1 right?

2 **A. Correct.**

3 Q. From Jessie alley, on the date of the
4 collision, where -- where did you exit -- on what street
5 did you exit?

6 **A. You go -- alley is one way down from 6th. And**
7 **from there, you see the Mint building, which is -- you**
8 **know the Mint building, they used to make coin in?**

9 Q. Yes.

10 **A. You cannot go straight up. You have to turn**
11 **left and there's a stop sign on Mission. And after**
12 **that, you have to turn right on that alley to take**
13 **Mission.**

14 Q. Okay. And then once you're on Mission, where
15 did you go?

16 **A. From Mission, comes 5th Street.**

17 Q. Okay. So which direction were you traveling
18 on 5th Street before this collision?

19 **A. When I get to Mission, I have to turn left on**
20 **Mission, which is -- there's a light. I remember I have**
21 **to wait on light. And slowly I went to 5th and Mission,**
22 **south.**

23 **We find another street called Howard Street.**
24 **After Howard --**

25 Q. And from there, where did you go?

1 A. After I crossed Howard, which is -- I'm going
2 south right now. After I cross Howard, I attempt to
3 turn left on Tehama. It's street or alley. I just
4 can't call it.

5 Q. So you were turning left from -- right before
6 this collision happened, you were turning left from 5th
7 Street onto Tehama?

8 A. Yes. After I cross Howard -- which is another
9 street -- I go down a little bit farther and Tehama is
10 on my left. So I slowed down and very, very, very
11 slowly -- very slowly to go -- there's a lot of traffic,
12 so I turn down Tehama, on my left.

13 Before I turn down, everything was clear,
14 nobody on left, nobody on right, barely going 5 miles an
15 hour. So when I finished turning, I complete my turn,
16 completely. I don't hear anything bump into me or
17 impact my car or anything, but I heard some screaming.
18 I was going slowly. I heard some screaming. I look in
19 my mirror, both sides, left or right, and I see somebody
20 laying down on the sidewalk screaming.

21 I say, Be a good citizen, see what's going on.
22 So I stop and I pulled my vehicle on the right to the
23 street, so -- I don't want to block nobody's traffic.
24 And I get out of my car to see who is that laying down
25 and screaming. I went and I say, Are you okay, guy? He

1 didn't say anything. I say, I'm going to calling 911
2 for you. He didn't say nothing. I call 911 and I
3 describe what's going on and I waited until the police
4 come and the ambulance.

5 So, of course, they come and see the guy. And
6 after a while, I still -- I don't go nowhere. I still
7 waited. After that, the police come to me. You see
8 anything? I say what I told you right now. I heard
9 some screaming and I waited and I couldn't see and the
10 guy say -- don't say nothing, mumbling, whatever.

11 The police tell me -- he told me, Okay. The
12 police took -- was talking to the guy. And after --
13 suddenly came to me and I see them taking scene pictures
14 and talking. And he said, Hey, guy, you have a driver's
15 license and your information about you? I say, Yeah. I
16 say, Why? They say, The guy claim you hit him. I said,
17 Well, thank God -- thank God I'm a good citizen. I
18 don't -- I never left. Otherwise, I'd be blamed for
19 everything, even true or not true.

20 So I provided him with my information, my
21 driver's license, my insurance and everything. He took
22 pictures, photo for -- from my vehicle. And after that,
23 I waited. He come back and tell me, Sir, you have a
24 good day. You're good to go. And that's what happened.

25 Q. Okay. Thank you for all of that information.

EXHIBIT D

Meet-and-confer / defense correspondence (declaration Ex. 3)

Source id: mc_letter

DEFENSE/ARCHIVE/2026-04-11-pre-filing/root-essays-letters/Rosario v CSAA - M&C Ltr.pdf

April 6, 2026

Author's email: ctapp@porterscott.com
toconnell@porterscott.com

VIA CERTIFIED MAIL

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

RE: ROSARIO v CSAA INSURANCE EXCHANGE, et al.
San Francisco County Superior Court, Case No. CGC-25-631802
Meet & Confer re Demurrer and Motions to Strike

Mr. Rosario:

Please accept this correspondence as an attempt to meet and confer regarding the deficiencies in your First Amended Complaint (“FAC”) against the Defendant CSAA INSURANCE EXCHANGE (“Defendant” or “CSAA”). My office represents CSAA in this action.

I understand that you do not have an attorney representing you in this case. If that changes, at any point, please make sure that I am immediately made aware, and I will then direct all correspondence through your attorney.

I also must extend to you an offer to engage in a meet and confer phone call on the topics addressed in this letter and my office’s anticipated demurrer and motions to strike (per Code Civ. Proc. §§ 436; 425.16. The deficiencies on the face of your FAC, filed on February 25, 2026, are subject to a demurrer and motions to strike pursuant to California Code of Civil Procedure §§ 430.10; and 436.

Both Causes of Action: 1) Fraud; and 2) Violations of the UCL are Legally Unsupportable against CSAA

There are several legal and factual bases for Defendant to demurrer/move to strike your FAC. Those several bases will be listed herein, with a short description of the relevance of each objection.

///

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1) Protected Litigation Conduct:

All your factual allegations against my client, CSAA, squarely target protected litigation conduct under Civil Code § 47(b) and Code Civ. Proc. § 425.16 and your claims against CSAA are therefore barred as a matter of law. As you know, your factual allegations target the underlying defense of your personal injury lawsuit and jury trial. Judgment in that jury trial was entered in April 2025, after the jury rendered a defense verdict. All your FAC's allegations focus on the litigation activity, conduct, and communications on the part of CSAA and its retained insurance defense counsels. This is in violation of black letter California law, shielding CSAA from such legally unsupportable and duplicative litigation.

Furthermore, your FAC's unlawful targeting of such privileged conduct justifies my clients filing a Special Motion to Strike under Code Civ. Proc. § 425.16. As you may be aware, this so-called Anti-SLAPP motion, and legal authorization for that motion, requires the recovery of attorneys' fees and costs in the event that CSAA prevails on its Anti-SLAPP motion. I assure you, my office will file an Anti-SLAPP motion, should you not withdraw these pleadings, and my client will vigorously seek recovery of its attorneys' fees and costs in defending against this lawsuit.

2) The Statute of Limitations Precludes Your Claim.

The statute of limitations for a claim under the California Unfair Competition Law (UCL), codified in Cal Bus & Prof Code § 17200, is four years. Meanwhile, the statute of limitations for fraud claims in California is three years, as provided under Cal Code Civ Proc § 338. It is also true that “[t]he cause of action... is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.”.) *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1472. “To excuse failure to discover the fraud within three years after its commission, a plaintiff also must plead “facts showing that he was not negligent in failing to make the discovery sooner and that he had no actual or presumptive knowledge of facts sufficient to put him on inquiry. To that end, a plaintiff must allege facts showing the time and surrounding circumstances of the discovery and what the discovery was.” (*Ibid.*)

Here, the FAC fails to properly allege timeliness on either the UCL claim or the fraud claim. Factually, the FAC alleges that CSAA's “Liability-Claim Denial Letter” (*FAC* ¶ 1) was false when issued, in February of 2021. (*FAC* ¶ 4). However, you proceeded to litigate the underlying case from 2021 – 2025, culminating in a jury verdict. The FAC fails to allege any “facts showing the time and surrounding circumstances of the discovery and what the discovery was.” *Cansino, supra*, 224 Cal.App.4th at 1472.

///

Franciscus Dylan Rosario
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3) No Standing

Mr. Rosario, you lack standing to sue CSAA. As you are well aware, CSAA was the insurance carrier for a third-party insured, Mr. Abdelhalim, whom you sued, and lost. That makes you a third party to CSAA and its counsels. “As a general rule, a third party may directly sue an insurer only when there has been an assignment of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th 268) (emphasis added). Here, you obtained neither an assignment from, nor judgment against, the Insured, Mr. Abdelhalim. Therefore, you do not have standing to sue CSAA and this effort to do so is improper and subject to demurrer.

4) This Court has No Jurisdiction (Code of Civ. Proc., § 430.10(a).)

Code Civ. Proc. § 904.1(a) provides: that “[a]n appeal, other than in a limited civil case, is to the court of appeal,” including from “a judgment.” This Court does not have jurisdiction to hear an appeal of this Court’s own prior entry of judgment. The entire FAC in reality is an unlawful and improper “appeal” at the Superior Court level, masquerading as a new lawsuit. This justifies demurrer.

5) Another Action Pending (Code of Civ. Proc., § 430.10(b).)

As above, your pending appeal justifies demurrer under this subdivision as well.

6) The pleading fails to allege facts sufficient to constitute any cause of action against Defendants. (Code of Civ. Proc., § 430.10(e).)

For a host of reasons, you have not alleged sufficient facts to constitute a cause of action against CSAA. For one, you have not pled fraud with the required level of “particularity.” Each element [of fraud] must be alleged with particularity.” (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1059–1060). Your FAC falls short of this requirement. Nowhere does your FAC purport to plead the actual “misrepresentations” made by CSAA to the Court, or anyone else. In fact, all the key allegations of “misleading representations” in your pleading target PSA, not my clients.

7) The FAC “is uncertain” (Code of Civ. Proc., § 430.10(f).)

Your pleading is unintelligible and ambiguous insofar as it cannot possibly constitute a cause of action against my clients. Your true remedy is an appeal, which you have already filed. This new lawsuit is completely legally unsupportable and frivolous.

///

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8) Collateral Estoppel

“A collateral attack is an attempt to avoid the effect of a judgment or order made in some other proceeding.” *F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 462, 471 (*quoting Rico v. Nasser Bros. Realty Co.* (1943) 58 Cal.App.2d 878, 882.) “An attack in a second action on an earlier judgment is collateral.” (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) “A judgment of a court of general jurisdiction can only be set aside on collateral attack if the judgment is void on the face of the record.” (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Finally, “collateral estoppel precludes relitigation of issues argued and decided in prior proceedings.” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)

Here, your FAC’s entire effort is to relitigate all the same issues presented in his underlying case—including CSAA’s “Liability-Claim Denial Letter” (*FAC* ¶ 1); the alleged falsity of that letter (*FAC* ¶ 4); CSAA’s “Fund[ing] and Direct[ing] [of] the Defense” (*FAC* ¶ 22F); and the alleged other “False and Misleading Representations” CSAA allegedly made to the Court while maintaining its “Litigation-Stage Denial Posture.” (*FAC* ¶ 22F). All the key factual allegations against CSAA target the third-party claims denial and litigation of that denial, which culminated in a defense verdict and valid judgment. Indeed, all the issues presented in this present FAC were already “argued and decided in prior proceedings.” (*Singh, supra*, 227 Cal.App.4th at 826)

Conclusion:

Based upon the above, your First Amended Complaint (“FAC”) fails to state sufficient facts to support the cause of action contained therein. I would like to offer to conduct a telephone conversation with you to discuss your FAC. On that call, I will discuss with you in greater detail the points contained in this letter, which will also be discussed in my client’s subsequent Demurrer, Motion to Strike (Code Civ. Proc. § 436), and Special Motion to Strike (Code Civ. Proc. § 425.16).

I implore you to withdraw your pleadings and dismiss this meritless lawsuit. I understand your loss at trial was difficult for you; however, if you continue in this misguided effort, my client will seek recovery of its attorneys’ fees and costs in Striking your pleadings.

///

Franciscus Dylan Rosario
Rosario v CSAA Insurance Exchange, et al.
April 6, 2026
Page 5

I look forward to having a telephone conference to discuss the contents of this meet and confer correspondence. Please let me know as soon as possible your availability to have a conference regarding the pleading issues identified above, prior to our deadline to file a demurrer and motions to strike, which is **Monday, April 22, 2026.**

Very truly yours,

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By Chad S. Tapp
Tyler J. O'Connell

CST/TOC/mps

EXHIBIT E

CSAA investigation / retrieval record

Source id: investigation

CLERKS-TRANSCRIPTS-SOURCES/EXHIBIT.001.CSAA-INVESTIGATION.pdf



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Attention : **Tonya McConnaughay**

CSAA INSURANCE GROUP,AAA INSUR

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Metro Reporting Customer Support 1-800-245-6686 or help@metroreporting.com

Metropolitan Reporting Bureau
BOX 926, William Penn Annex
Philadelphia, PA 19105-0926
FAX (800) 343-9047

Type of Report: AUTO ACCIDENT

INSURED : SUBHI A ABDELHALIM
CLAIM NUMBER: 1004-09-1054
POLICY NUM. : CAAS100310857
DATE OF LOSS: 02/04/21
LOSS STREET : 5th St & Tehama St
LOSS CITY : San Francisco CA
POLICE DEPT.: NEED SIGN AUTH WITH REQ
REPORT NUM. : 210079556
INS. DRIVER : ABDELHALIM SUBHI A
OTHER DRIVER:
PCT./DIST. : SAN FRANCI
DESC.OF OTHER: v1 turning right po

THANK YOU FOR THE ORDER!

Any questions or problems please feel free to contact us.

PH. (800) 245-6686 or Help@metroreporting.com



1131096098



EXHIBIT F

February 18, 2025 pretrial hearing (RJN item)

Source id: feb18_hearing

CLERKS-TRANSCRIPTS-SOURCES/_EXHIBIT.HEARING.FEB18.pdf

In the Matter Of:

ROSARIO vs ABDELHALIM, ET AL.

CGC-21-594102

HEARING

February 18, 2025



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1 So can you tell me why they're here? I assume
2 they're Mr. Rosario's --

3 MR. JESSUP: Former counsel.

4 THE COURT: -- former counsel, and they're here
5 on the basis of some subpoena that you issued?

6 MR. ROSARIO: Yes, Your Honor. You had
7 mentioned that the providence of the 911 transcript CDs
8 that were not passed to the defense, that you wanted me
9 to prove to you where those were to be able to provide
10 those. We had 911 emergency services send those to you
11 and Dolan had a copy since 2021.

12 THE COURT: Okay.

13 MR. ROSARIO: So they are here to testify on
14 that and provide those documents.

15 THE COURT: All right.

16 Counsel, do you have the -- I think it's the
17 compact disc or recording that Mr. Rosario referenced?

18 MR. JESSUP: Your Honor, are you talking about
19 the -- well, there's a bunch of things. We have, and
20 was produced to defense counsel, body cam footage, about
21 five videos, as well as the 911 audio, as well as the
22 CAD log. In addition --

23 THE COURT: Okay. Sorry. I'm trying to take
24 this down.

25 A body cam and what else did you provide?

1 MR. JESSUP: The 911 audio calls.

2 THE COURT: What else?

3 MR. JESSUP: And the CAD report. The CAD,
4 C-A-D, report.

5 THE COURT: Right.

6 MR. JESSUP: Along with various other
7 documents.

8 THE COURT: Okay.

9 MR. JESSUP: In addition, Your Honor, these
10 documents were identified in discovery, and last
11 February -- I have a copy of the Compaq subpoena issued
12 by defense to San Francisco Police Department requesting
13 all of this data.

14 THE COURT: Defense issued a subpoena?

15 MR. JESSUP: Correct. Now -- sorry, Your
16 Honor.

17 THE COURT: Go ahead.

18 MR. JESSUP: Prior to current defense counsel's
19 involvement, there was other -- another firm involved on
20 behalf of the defense. All of that -- those items were
21 served on them in the production for discovery as well
22 at Mr. Rosario's deposition, in addition, utilized in
23 the deposition of defendants. Whether or not prior
24 counsel gave that to current counsel, I don't know.

25 THE COURT: Okay.

1 MR. JESSUP: Thank you.

2 THE COURT: All right. Ms. Navaratnasingham.

3 MS. NAVARATNASINGHAM: Yes, Your Honor.

4 So this is news to me. We didn't realize that
5 prior to handling counsel may have received it, and I
6 can't confirm whether that was produced. I take
7 counsel's word, of course, but we -- I can represent to
8 you that our office did not receive the 911 call until
9 the day of the MSC -- the day before the MSC and that
10 was an attachment link. There was no sort of ability to
11 verify whether that was accurate or not.

12 And we were not present -- our office was not
13 on the case when Mr. Rosario's deposition was taken
14 either.

15 THE COURT: I see. Okay.

16 I think there are certain copies of some
17 materials that have been submitted by Mr. Rosario. I
18 think we did get a copy of a reply from someone with the
19 custodian of records for -- it may have been the fire
20 department. Am I correct?

21 You issued a subpoena, Mr. Rosario, for some
22 documents, and they said they no longer have them. I
23 think that was the response.

24 MR. ROSARIO: We were concerned, Your Honor --

25 THE COURT: No. I'm just asking you whether --

1 people and depose them, please, Your Honor.

2 THE COURT: Okay. Any final comments?

3 MS. NAVARATNASINGHAM: I had two comments, Your
4 Honor, and now I'm forgetting them because so much has
5 been said.

6 Well, I mean, we oppose the continuance. He's
7 been pro per since August. He's had the file since
8 August. According to Mr. Jessup, the body cam footage,
9 the 911 call, all this stuff has been in his possession
10 since August.

11 The motion in limine that I filed was saying
12 that the 911 call was not produced in the normal course
13 of discovery. Your Honor has cured that concern of his,
14 and you are allowing him to present that and subject to
15 relevance and other objections.

16 You know, the identification of late witnesses
17 is not grounds for a continuance. You are free to call
18 a witness to testify at trial. You don't necessarily
19 have to take a deposition. You know, you can list
20 people on your witness list. None of this is cause for
21 a continuance.

22 And so we, of course, object and would like to
23 select a trial date.

24 THE COURT: Very well.

25 Anything else, Mr. Rosario?

EXHIBIT G

April 16, 2025 trial materials incl. Dolan admission context (RJN item)

Source id: april16_trial

CLERKS-TRANSCRIPTS-SOURCES/_EXHIBIT.APRIL.16.2025.pdf

Trial Transcript

Case Number: CGC-21-594102

Date: April 16, 2025

In the matter of:

FRANCISCUS DYLAN ROSARIO v SUBHI ABDELHALIM, et al.

TRIAL

Day 7

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1 You folks, however, must have a device that
2 plays the recording. I don't see anything in front of
3 me right now.

4 You may have it in the anteroom, but that
5 needs to be ready and there should be no delays in
6 playing that once Mr. Rosario seeks to have that
7 played in front of the jury.

8 The transcripts, there should be 18 of them.
9 That is 15 for the jurors that are here; one for
10 Defense Counsel, who apparently has one; one for the
11 Court and one for the Courtroom Deputy.

12 And instruction that is always given is that
13 the evidence in the case is what the recording
14 purports to be -- I have already instructed them as
15 much -- not what the transcript says. All right?

16 The transcript is simply a guide for the
17 jurors to follow along.

18 To the extent that there is some difference
19 in what happened, it is the recording that takes
20 priority and is the evidence for them to consider.
21 All right.

22 So that addresses the 911.

23 Is there something else that you seek to have
24 admitted? I don't want to spend time during the
25 middle of the trial addressing these issues during the
26 time when the jury is present. It is a waste of their
27 time.

28 MR. ROSARIO: Your Honor, the Defense asked

1 for the body cams to be entered into evidence.

2 We would also like to use those. So we would
3 like to ask the Defense: Go ahead, provide the copies
4 of the body cams that they have retained from the San
5 Francisco Emergency Services so we can avoid this type
6 of problem, so they don't challenge the credibility.

7 They asked for the body cams, Your Honor, to
8 be admitted.

9 It is on their evidence list.

10 THE COURT: The question is -- I think the
11 ask is a request to review or to present the body cams
12 that are apparently on your exhibit list.

13 MS. NAVARATNASINGHAM: Sure. They were
14 provided by Dolan. He has had them for whatever,
15 sure.

16 THE COURT: All right. So what is the ask?
17 You don't have them?

18 MR. ROSARIO: No. I have them. I don't want
19 the same situation where they are going back saying we
20 don't know where they are from.

21 THE COURT: Mr. Rosario, let me put it this
22 way: If they are the only ones who had the video
23 recordings or the body cameras and for some reason you
24 never recovered them or retrieved them from the
25 Custodian of Records and so forth, and were not on
26 your exhibit list, you cannot come into the courtroom
27 and then ask the other side whether they would be
28 willing to part with those exhibits. It is their

1 call.

2 But if you have those materials, then you are
3 perfectly welcome to submit those, provided you
4 provide some authentication, proper authentication, of
5 the body cameras.

6 I am going to subject anything and everything
7 that any party submits in this matter to the rules of
8 evidence.

9 MR. ROSARIO: Okay. We will provide the
10 certifications we have.

11 MS. NAVARATNASINGHAM: Your Honor, on the
12 point of the body cam footage, there is five videos.
13 They are quite lengthy and a lot of it is just
14 standing around and some of it is talking about
15 something else.

16 There is also insurance references in there.

17 So what we did on our end was we pared it
18 down to just the relevant portions that we wanted the
19 jury to hear.

20 I think all in we have about 8 or 9 minutes
21 pared down, because it would be a waste of time for
22 them to listen to all five videos.

23 THE COURT: Are there transcripts with them?

24 MS. NAVARATNASINGHAM: We could prepare
25 transcripts.

26 THE COURT: You should.

27 MS. NAVARATNASINGHAM: Okay.

28 THE COURT: You should share them, obviously,

EXHIBIT H

January 17, 2025 Motion in Limine No. 17 (Clerk's Transcript excerpt)

Source id: mil_17_jan17_2025

CLERKS-TRANSCRIPTS-SOURCES/CGC-21-594102_A173827_CTX.pdf

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Attorneys for Defendant
SUBHI ABDELHALIM

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

01/17/2025
Clerk of the Court
BY: YOLANDA TABO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

IN AND FOR THE COUNTY OF SAN FRANCISCO – UNLIMITED JURISDICTION

FRANCISCUS DYLAN ROSARIO

Plaintiff,

v.

**SUBHI ABDELHALIM, INDIVIDUALLY,
AND DBA SONOMA LIQOUR, DOES 1 TO
50,**

Defendants.

Case No. CGC-21-594102

**DEFENDANT SUBHI ABDELHALIM'S
MOTION IN LIMINE NO. 17 TO
PRECLUDE PLAINTIFF FROM USING
OR REFERENCING AN ALLEGED 911
TRANSCRIPT LOG AND AUDIO
RECORDING AS IT WAS NOT
DISCLOSED IN DISCOVERY, LACKS
FOUNDATION AND IS INADMISSIBLE
HEARSAY**

Complaint Filed: July 27, 2021
Trial Date: January 27, 2025

**TO THE HONORABLE JUDGE OF THE SUPERIOR COURT, TO ALL PARTIES AND
TO THEIR ATTORNEYS OF RECORD:**

Defendant SUBHI ABDELHALIM (hereinafter “Defendant”) by and through his attorneys,
PHILLIPS, SPALLAS & ANGSTADT LLP, respectfully submits the following MOTION IN LIMINE
and Points and Authorities in Support Thereof:

**For ease of the Court’s reference, and to avoid redundancy, Defendant hereby refers the
Parties and the Court to the Global Statement of Facts and Declaration of Priya
Navaratnasingham which is filed in support of all Motions in Limine herewith.**

I. AUTHORITY FOR MOTIONS IN LIMINE

The purpose of Motions *in Limine* is to prevent reference to matters which should be excluded

1 from the jury's hearing. Although a Motion *in Limine* is not specifically mentioned by any California
2 statute, it has long been accepted as part of the Court's power to conduct trial in an orderly manner. (See
3 Code of Civil Procedure § 187; *Lemar v. Boise Cascade, Inc.* (1980) 107 Cal.App.3d 1, 9-12) Also, the
4 Court has authority under Evidence Code §§ 350 and 352 to exclude any irrelevant or unduly prejudicial
5 evidence, and as gatekeeper, to determine the question of the admissibility of evidence outside the
6 presence of a jury. See Cal. Evid. Code § 402.

7 **II. MATTERS TO BE EXCLUDED FROM EVIDENCE AND THE JURY**

8 Defendant hereby moves this Court for the following order prohibiting Plaintiff FRANCISCUS
9 DYLAN ROSARIO *in pro per* ("Plaintiff"), Plaintiff's witnesses, and any other parties and their agents,
10 representatives and witnesses from testifying on behalf of Plaintiff and from discussing, posing
11 questions regarding, introducing evidence regarding, or in any manner suggesting to the jury the
12 following matter, and that plaintiff *in pro per* be ordered to inform each of Plaintiff's witnesses of the
13 Court's Order *in Limine* outside the presence of the jury and before each witness testifies to the matters
14 discussed below.

15 **A. Purported 911 Log and Recording Should be Excluded as it Was Not Disclosed in**
16 **Discovery; Lacks Foundation and is Inadmissible Hearsay**

17 Defendant anticipates that Plaintiff will try to introduce an unauthenticated document entitled
18 "Official Transcript of 911 Call" and an unauthenticated audio recording which Plaintiff purports to be a
19 911 call log and an audio recording of a 911 call relating to the incident. First, this alleged log and
20 recording were not produced during discovery, rather produced at the eleventh hour prior to trial.
21 Second, both the alleged log and recording completely lack foundation, are not authenticated and is
22 inadmissible hearsay. Defendant has no idea where this 911 call log or audio recording came from and
23 who created it.

24 Defendant seeks an order precluding Plaintiff from offering the alleged 911 call log and the
25 recording into evidence as Plaintiff. This Order applies to every stage of trial. Violations of this Order
26 shall be grounds for such relief as the Court, in its discretion, deems proper, up to and including the
27 granting of a mistrial. This Order shall be made pursuant to the court's holding in *Deeter v. Angus*
28 (1986) 179 Cal.App.3d 241.

1 If Plaintiff failed to produce documents or audio recordings in his possession which were
2 requested, this clearly would constitute a misuse of the discovery process. Code of Civil Procedure §
3 2023. Courts have found that withheld evidence, including documents, is appropriately excluded
4 because, among other reasons, it “subjects the adversary to unfair surprise at trial.” *Deeter*, 179 Cal.
5 App. 3d at 255. Further, this Court has the authority to exclude at trial any and all evidence that Plaintiff
6 has withheld from discovery. *Thoren v. Johnston and Washer* (1972) 29 Cal.App.3d 270.

7 Further, California *Evidence Code* § 1401 provides: “(a) Authentication of a writing is required
8 before it may be received in evidence. (b) Authentication of a writing is required before secondary
9 evidence of its content may be received in evidence.”

10 California *Evidence Code* § 403 provides: “(a) The proponent of the proffered evidence has the
11 burden of producing evidence as to the existence of the preliminary fact, and the proffered evidence is
12 inadmissible unless the court finds that there is evidence sufficient to sustain a finding of the existence
13 of the preliminary fact, when: (1) The relevance of the proffered evidence depends on the existence of
14 the preliminary fact; (2) The preliminary fact is the personal knowledge of a witness concerning the
15 subject matter of his testimony; (3) The preliminary fact is the authenticity of a writing; or (4) The
16 proffered evidence is of a statement or other conduct of a particular person and the preliminary fact is
17 whether that person made the statement or so conducted himself.”

18 California *Evidence Code* § 1200 states that “(a) “Hearsay evidence” is evidence of a statement
19 that was made other than by a witness while testifying at the hearing and that is offered to prove the
20 truth of the matter stated. (b) Except as provided by law, hearsay evidence is inadmissible.”

21 “Hearsay may be briefly understood as an out-of-court statement offered for the truth of its
22 content. Evidence Code section 1200, subdivision (a) formally defines hearsay as “evidence of a
23 statement that was made other than by a witness while testifying at the hearing and that is offered to
24 prove the truth of the matter stated.” A “statement” is “oral or written verbal expression” or the
25 “nonverbal conduct of a person intended by him as a substitute for oral or written verbal expression.”
26 (Evid.Code, § 225.) Senate committee comments to Evidence Code section 1200 explain that a
27 statement “offered for some purpose other than to prove the fact stated therein is not hearsay.” [Internal
28 Citation Omitted] Thus, a hearsay statement is one in which a person makes a factual assertion out of

1 court and the proponent seeks to rely on the statement to prove that assertion is true. Hearsay is
2 generally inadmissible unless it falls under an exception. (Evid.Code, § 1200, subd. (b).)” (*People v.*
3 *Sanchez* (2016) 63 Cal. 4th 665, 674)

4 Plaintiff has not provided any information as to the source of this audio file and transcript log nor
5 provided any documentation that would certify or authenticate said transcript log and audio file. Plaintiff
6 has not laid any foundation to establish the authenticity of the purported 911 call log and the audio
7 recording. Plaintiff has not established the chain of custody for either the log or the recording. Defendant
8 has no idea who created the log and recording, how they were maintained, how Plaintiff got them, or the
9 identity of the custodian of the log and recording. It does not appear that either the log or the recording
10 were obtained via proper subpoena process.

11 The document which Plaintiff purports is an alleged 911 call log and the alleged audio recording
12 lack foundation and is inadmissible hearsay.

13 **III. CONCLUSION**

14 For all the foregoing reasons, Defendant respectfully requests and moves to preclude Plaintiff
15 from using or referencing a 911 audio recording and transcript log at trial.

16
17 Date: January 17, 2025

PHILLIPS, SPALLAS & ANGSTADT, LLP

18
19 

20 Robert K. Phillips
21 Priya Navaratnasingham
22 Alberto Reyna
23 Attorneys for Defendant
24 SUBHI ABDELHALIM
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